

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jason Malone	Team: Team # 1	CCRB Case #: 200403560	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 04/15/2004 9:20 PM	Location of Incident: West 126th Street and Amsterdam Avenue	18 Mo. SOL 10/15/2005	Precinct: 26		
Date/Time CV Reported Thu, 04/15/2004 9:20 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 04/20/2004 2:59 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Rolando Carbonell	02708	928017	026 PCT
2. POM Rafael Iturralde	22881	928515	026 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Frank Sorensen	00000	882908	026 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Rafael Iturralde	Abuse: PO Rafael Iturralde stopped the vehicle in which § 87(2)(b) was an occupant on 4/15/04.	A . Unsubstantiated
B . POM Rolando Carbonell	Abuse: PO Rolando Carbonell stopped the vehicle in which § 87(2)(b) was an occupant on 4/15/04.	B . Unsubstantiated
C . POM Rafael Iturralde	Discourtesy: PO Rafael Iturralde spoke obscenely and/or rudely to § 87(2)(b)	C . Substantiated
D . POM Rafael Iturralde	Abuse: PO Rafael Iturralde stopped the vehicle in which § 87(2)(b) was an occupant a second time on 4/15/04.	D . Unsubstantiated
E . POM Rolando Carbonell	Abuse: PO Rolando Carbonell stopped the vehicle in which § 87(2)(b) was an occupant a second time on 4/15/04.	E . Unsubstantiated
F . POM Rolando Carbonell	Discourtesy: PO Rolando Carbonell spoke obscenely and/or rudely to § 87(2)(b)	F . Substantiated

Synopsis

On 4/15/04, § 87(2)(b)'s vehicle was pulled over by PO Rafael Iturralde and PO Rolando Carbonell on West 126th Street and Convent Avenue in Manhattan. § 87(2)(b) handed PO Iturralde two PBA cards given to him by § 87(2)(b) and § 87(2)(b) of the 44th precinct. PO Iturralde looked at the PBA cards and asked PO Carbonell, "Isn't § 87(2)(b) the moron that gave you a summons before?" § 87(2)(b) also alleged that PO Iturralde called § 87(2)(b) an "asshole."

PO Iturralde and PO Carbonell released § 87(2)(b) without a summons, but pulled his vehicle over again further down the road. During the second stop, § 87(2)(b) alleged that PO Carbonell called him "a stupid ass". § 87(2)(b) was not issued a summons or arrested during the second stop.

§ 87(2)(g)
Therefore, it is recommended that allegations A and B be unsubstantiated. § 87(2)(g)
§ 87(2)(g) Therefore, it is recommended that allegation C be closed as substantiated.

§ 87(2)(g)
Therefore, it is recommended that allegation F be substantiated.

Summary of Complaint

§ 87(2)(b) s 911 Call

On 4/15/04, § 87(2)(b) contacted 911 at 9:21pm and stated to the operator that he was having a problem with PO Carbonell and requested that a supervisor be sent to the location (Enclosure #5A-B).

§ 87(2)(b) s IAB Log Statement

On 4/15/04, § 87(2)(b) provided a statement to IAB via a 911 call (Enclosure # 15). § 87(2)(b) stated that he was pulled over by an officer in an unmarked vehicle, and that he displayed PBA cards to the officer given to him § 87(2)(b). § 87(2)(b) stated that the subject officer commented to his partner that he knew § 87(2)(b) and that § 87(2)(b) was an asshole.

He also stated that the subject officer stated, "This kid's stupid! He's an asshole!" § 87(2)(b) further reported that his PBA cards were taken and given to the 26th precinct delegate.

Interview of Complainant/Victim

On 4/20/04, § 87(2)(b) filed a complaint with the CCRB by phone. § 87(2)(b) is a 5ft. 6in., 160lbs. Hispanic male § 87(2)(b). § 87(2)(b) was interviewed on 5/12/04 (Enclosure #7A-D).

On 4/15/04, § 87(2)(b) was driving his vehicle, which is a black Honda Accord with tinted windows, with § 87(2)(b), § 87(2)(b), and an unidentified friend of § 87(2)(b)s and as he approached the intersection of West 128th Street and Convent Avenue in Manhattan he was pulled over by two police officers, identified as PO Rafael Iturralde and PO

Rolando Carbonell. PO Iturralde approached the driver's side of the vehicle, while PO Carbonell approached the passenger side. § 87(2)(b) recalled observing a Hispanic juvenile dressed in plainclothes exit the rear of the RMP and approach his vehicle with PO Iturralde and PO Carbonell. PO Iturralde requested to see § 87(2)(b)'s driver's license, registration, and insurance card. § 87(2)(b) retrieved his identification and handed it to PO Iturralde along with two PBA cards. § 87(2)(b) asked, "May I ask why you pulled me over?" and PO Iturralde replied, "Because your windows are too dark."

PO Iturralde looked at the PBA cards and asked, "Who are these people on the PBA cards?" § 87(2)(b) replied, "One of them is § 87(2)(b), § 87(2)(b) and the other is § 87(2)(b), § 87(2)(b). PO Iturralde looked at PO Carbonell and asked, "Isn't § 87(2)(b) the moron that gave you a summons the other day?" PO Iturralde then looked at the other PBA card and stated, "Yeah, I remember § 87(2)(b). He was an asshole in the academy. He was in the same class that I was." PO Iturralde, PO Carbonell, and the unidentified male then began laughing.

PO Iturralde handed § 87(2)(b) back his credentials and stated, "All right. I am going to give you a break." As PO Iturralde was returning to his vehicle, § 87(2)(b) stated, "Those remarks about § 87(2)(b) were not necessary." PO Iturralde, PO Carbonell, and the unidentified Hispanic male began laughing again and entered the RMP. § 87(2)(b) started his vehicle and pulled into the lane of traffic. PO Iturralde pulled their RMP parallel to the left side of § 87(2)(b)'s vehicle. § 87(2)(b) thinking that the officers were trying to pull around him, slowed down to allow them to pass.

PO Iturralde stopped the vehicle parallel to his and did not move. § 87(2)(b) pulled in front of the RMP and continued driving down the street. PO Iturralde pulled up beside § 87(2)(b)'s vehicle again and continued following beside him. Forty-five seconds later, PO Iturralde put on his lights and sirens. § 87(2)(b) pulled over and PO Iturralde pulled beside him. While staring at § 87(2)(b) PO Carbonell opened the door of the RMP hitting § 87(2)(b)'s driver's side door. § 87(2)(b) did not allege any damage to his vehicle.

PO Carbonell exited the RMP and stated, "Let me get your license and PBA cards." § 87(2)(b) replied, "You know what? I guess we have a little problem here. I am being harassed right now. Will you please call your lieutenant and sergeant?" PO Carbonell replied that he would not. § 87(2)(b) then proceeded to call 911 on his cell phone.

While he was speaking to the operator, he heard PO Carbonell state, "Oh! This kids being stupid. Oh! This guy's a stupid ass." PO Iturralde backed the RMP up behind his vehicle, and the Hispanic youth exited the vehicle and departed the area. Five minutes later, a lieutenant, identified as Lt. Frank Sorensen, arrived at the location. § 87(2)(b) told Lt. Sorensen that PO Carbonell hit his door, and Lt. Sorensen asked him if he had any damage to his vehicle. § 87(2)(b) stated that he did not observe any damage to his vehicle. Lt. Sorensen stated, "If tomorrow you see any damage, then come to the precinct, and we will take care of that."

§ 87(2)(b) informed Lt. Sorensen of what PO Iturralde stated about his family, and Lt. Sorensen wrote down what he stated. § 87(2)(b) could not recall what he wrote it on. After stating this, PO Iturralde and PO Carbonell departed the area. § 87(2)(b) recalled being very upset and forgetting to speak to Lt. Sorensen about the rest of the incident, so he went to the stationhouse later that evening. § 87(2)(b) stated that he asked an officer in the stationhouse for Lt. Sorensen and was informed that he was in the field. § 87(2)(b) was instructed to come back at 12:00am. § 87(2)(b) began to inform the officer of why he was there and the unidentified officer identified himself as the PBA representative. The PBA rep asked if § 87(2)(b) was issued a summons and he stated, "What's important is that you did not get a summons. Just go home and have a good night." § 87(2)(b) stated that he was not satisfied with what happened, and intended to take this as far as he could. He then departed the area. § 87(2)(b) stated that he was not on the cell phone prior to his initial encounter with PO Iturralde and PO Carbonell.

Results of Investigation

§ 87(2)(b) provided two witnesses to the incident, § 87(2)(b) and § 87(2)(b). Because the third passenger returned to Puerto Rico, she could not be interviewed. Through the officer interviews, the investigator discovered that two individuals, § 87(2)(b) and § 87(2)(b) were riding along with PO Iturralde and PO Carbonell during the incident. The investigator contacted the Community Affairs officer and was faxed over § 87(2)(b) and § 87(2)(b)'s contact information. § 87(2)(b) and § 87(2)(b) who reside in Upstate New York, were interviewed by telephone.

The investigator verified the names of the officers that provided § 87(2)(b) with the PBA cards. PO § 87(2)(b) and PO § 87(2)(b) are documented as being assigned to the 44th precinct.

Interview of Witnesses

§ 87(2)(b) was interviewed on 5/11/04 (Enclosure #8A-C). § 87(2)(b) is a 5ft. 3in. 135lbs. Hispanic female who is § 87(2)(b) and § 87(2)(b)'s girlfriend. On 4/15/04, § 87(2)(b) was in § 87(2)(b)'s vehicle with § 87(2)(b) and another unidentified female. § 87(2)(b) was driving across West 129th Street in Manhattan to drop § 87(2)(b) off when they were pulled over by PO Rafael Iturralde and PO Rolando Carbonell. PO Carbonell approached the passenger side of the vehicle, while PO Iturralde approached the driver's side.

As soon as PO Carbonell approached the passenger side, he stated, "Oh! He's pimpin'. Playa. Playa." PO Iturralde requested § 87(2)(b)'s credentials, and he handed them to PO Iturralde. § 87(2)(b) also informed him that he had PBA cards and handed them to PO Iturralde. PO Iturralde asked how the officers were related to him, and § 87(2)(b) identified them as § 87(2)(b) and § 87(2)(b). PO Iturralde then stated to PO Carbonell, "Isn't this the asshole that gave your relative a summons?" PO Iturralde and PO Carbonell started laughing.

Although she could not recall exactly what PO Iturralde stated, she did recall him making comments about "stupid this and stupid that" concerning § 87(2)(b)'s relatives. § 87(2)(b) asked PO Iturralde why he pulled him over, and he stated that he was pulled over because of his tinted windows. PO Iturralde and PO Carbonell returned to their vehicle laughing. § 87(2)(b) pulled off and PO Iturralde and PO Carbonell pulled their vehicle parallel to § 87(2)(b)'s vehicle.

PO Iturralde and PO Carbonell pulled § 87(2)(b) over again. They parked their vehicle parallel to § 87(2)(b)'s, and PO Carbonell opened the RMP's door striking § 87(2)(b)'s driver's side door. PO Carbonell exited the vehicle and asked to see § 87(2)(b)'s driving credentials again. § 87(2)(b) stated that he was going to call 911, and PO Carbonell stated, "You aren't going to call anybody. Let me get your PBA cards." § 87(2)(b) refused to hand PO Carbonell his PBA cards. PO Carbonell stated, "Let me get the PBA cards. I am going to make sure that you are not going to get them tonight or ever."

§ 87(2)(b) handed him his PBA cards and called 911. PO Iturralde and PO Carbonell entered their RMP and backed it up. § 87(2)(b) observed a juvenile in plainclothes exit their vehicle. Minutes later, another officer, identified as Lt. Frank Sorensen, arrived at the location and approached § 87(2)(b) who was standing outside his vehicle. Lt. Sorensen asked him for his PBA cards, and § 87(2)(b) handed him the PBA cards. Lt. Sorensen instructed him that he could come back and get them from the stationhouse later. § 87(2)(b), § 87(2)(b) and § 87(2)(b) departed from the area.

§ 87(2)(b)

§ 87(2)(b) was interviewed on 5/11/04(Enclosure #9A-C). § 87(2)(b) is a 5ft. 4in., 120lbs. Hispanic female who is § 87(2)(b) and § 87(2)(b)'s sister. § 87(2)(g)

§ 87(2)(b) recalled sitting in the rear passenger seat of § 87(2)(b)'s vehicle. § 87(2)(b) also observed a young light skinned tall male in his early twenties wearing a black hat approach the passenger side of the vehicle with PO Carbonell. After PO Iturralde made the statement about § 87(2)(b)'s relatives, § 87(2)(b) replied, "That was unnecessary to say that." As they were walking back to their RMP, § 87(2)(b) stated, "You still did not tell me why you pulled me over", and PO Carbonell replied, "Oh, because of the tints, it was too dark."

During the second stop, § 87(2)(b) asked if PO Carbonell could call a lieutenant to the scene, but PO Carbonell refused. § 87(2)(b) replied, "Okay. I see we have a problem here, so I am going to call 911", and proceeded to call 911. PO Iturralde then pulled the RMP back, while PO Carbonell stood by § 87(2)(b)'s vehicle. PO Carbonell stated, "Oh look. He is being a fucking idiot. What a fucking idiot."

§ 87(2)(b) recalled that PO Carbonell and PO Iturralde were laughing at § 87(2)(b) while Lt. Sorensen was speaking to them. Lt. Sorensen took § 87(2)(b)'s PBA cards, and he and the other officers departed from the area.

§ 87(2)(b)

§ 87(2)(b) was interviewed on 7/9/04(Enclosure #10A-B). § 87(2)(b) is a Caucasian male who is a § 87(2)(b). On 4/15/04, § 87(2)(b) and § 87(2)(b) were on a ride along in the 26th precinct with PO Rafael Iturralde and PO Rolando Carbonell. According to § 87(2)(b) PO Iturralde and PO Carbonell pulled over a vehicle operated by a young male, identified as § 87(2)(b) with three female occupants. § 87(2)(b) was not certain why PO Iturralde and PO Carbonell pulled the vehicle over.

PO Iturralde and PO Carbonell parked their vehicle behind § 87(2)(b)'s vehicle; PO Iturralde exited the RMP and approached the driver's side of § 87(2)(b)'s vehicle. § 87(2)(b) did not recall PO Carbonell exiting the RMP. § 87(2)(b) recalled the RMP being parked a car length behind § 87(2)(b)'s vehicle. § 87(2)(b) also recalled the front driver and passenger side windows of the RMP being rolled down.

PO Iturralde approached the driver's side of § 87(2)(b)'s vehicle and requested § 87(2)(b)'s driving credentials. § 87(2)(b) handed PO Iturralde his license and began complaining and acting in an arrogant manner towards PO Iturralde. § 87(2)(b) recalled § 87(2)(b) handing him a PBA card along with his driving credentials. He stated that he heard PO Iturralde mention this while looking at § 87(2)(b)'s driving credentials. PO Iturralde kept telling § 87(2)(b) to calm down and be easy, but he refused to do so. § 87(2)(b) recalled hearing PO Iturralde ask something about § 87(2)(b)'s § 87(2)(b). But the exact nature of the conversation, he could not recall.

PO Iturralde then walked back to the RMP and decided to let § 87(2)(b) go. After PO Iturralde entered the RMP, § 87(2)(b) sped off. PO Iturralde followed behind them and pulled § 87(2)(b) over again. § 87(2)(b) recalled that they pulled him over the second time to see what his problem was.

PO Iturralde pulled the RMP next to § 87(2)(b)'s vehicle, so that the front half was parallel to the rear of § 87(2)(b)'s vehicle. PO Iturralde approached the driver's side of the vehicle and requested § 87(2)(b) to step out of the vehicle because he wanted to ask him a

couple of questions. § 87(2)(b) stepped out of the vehicle and began stating, “This is bull. Why are you pulling me over again?”

§ 87(2)(b) did not hear what was stated after this. Minutes later, another officer, identified as Lt. Frank Sorensen, pulled up behind the RMP, exited his vehicle, approached PO Iturralde and PO Carbonell, and began speaking to them. After speaking to PO Iturralde and PO Carbonell, Lt. Sorensen approached § 87(2)(b) and began to speak to him. § 87(2)(b) did not hear what § 87(2)(b) or Lt. Sorensen were stating.

§ 87(2)(b) stated that he did not hear either PO Iturralde or PO Carbonell speak discourteously towards § 87(2)(b). He recalled them being calm and courteous during the entire incident.

§ 87(2)(b)

§ 87(2)(b) was interviewed on 7/15/04 (Enclosure #11A-B). § 87(2)(b) is a Caucasian male who is § 87(2)(b). § 87(2)(b), § 87(2)(g) PO Iturralde and PO Carbonell exited the RMP and approached § 87(2)(b)'s vehicle. § 87(2)(b) recalled them being parked at least a car length away from § 87(2)(b)'s vehicle. § 87(2)(b) recalled the front and rear passenger, as well as driver's side windows of the RMP being rolled down.

§ 87(2)(b) recalled PO Carbonell standing a couple of feet away from the vehicle. § 87(2)(b) could not hear what the officers were stating to § 87(2)(b) because he was in the rear of the RMP. § 87(2)(b) recalled hearing § 87(2)(b) yell profanities at the officers. PO Iturralde instructed § 87(2)(b) to calm down, but he refused. PO Iturralde and PO Carbonell returned back to the vehicle, and told them what was going on. § 87(2)(b) did not recall the exact content of the conversation.

§ 87(2)(b) recalled PO Iturralde and PO Carbonell pulling § 87(2)(b) over a second time, exiting the vehicle, and approaching § 87(2)(b)'s vehicle. § 87(2)(b) recalled the RMP being a car length away from § 87(2)(b)'s vehicle. § 87(2)(b) did not hear what was said between § 87(2)(b) and the two officers or why he was pulled over a second time. After speaking to § 87(2)(b) PO Iturralde and PO Carbonell returned to the RMP. A minute later, another officer, identified as Lt. Frank Sorensen, arrived on the scene and approached the RMP. § 87(2)(b) could not recall what he stated to the officers.

Identification of Police Officers

§ 87(2)(b) recorded PO Iturralde and PO Carbonell's names and badge numbers during the incident.

Interview of Police Officers

PO Rolando Carbonell

PO Rolando Carbonell was interviewed on 5/18/04 (Enclosure #12A-E). On 4/15/04, PO Carbonell was working a 15:30 by 02:05 tour and was assigned to Sectors A and B with PO Rafael Iturralde. § 87(2)(b) and § 87(2)(b) were with them during their tour. According to PO Carbonell, he and his partner were traveling westbound on West 133rd Street in Manhattan when he and his partner observed a vehicle headed eastbound whose driver, identified as § 87(2)(b), was talking on a cell phone. § 87(2)(b) made a right on Convent Avenue, and PO

Carbonell and his partner proceeded behind the vehicle and pulled them over. PO Carbonell observed that the windows on § 87(2)(b)'s vehicle were darkly tinted.

Immediately after § 87(2)(b) pulled over, a female in the passenger seat attempted to exit the vehicle. PO Carbonell and his partner instructed her to get back in the vehicle, but she appeared hesitant to do so. They repeated the order, and she complied. PO Carbonell approached the passenger side of the vehicle, while PO Iturralde approached the driver's side of the vehicle. PO Carbonell recalled he and his partner ordering § 87(2)(b) to lower the rear windows, so they could see the occupants of the vehicle, which he did. PO Carbonell recalled standing five to six feet away from the vehicle.

PO Carbonell's partner stated something to the driver, but he could not hear what he was stating. PO Carbonell did not state anything to the occupants of the vehicle. PO Carbonell recalled § 87(2)(b) and § 87(2)(b) exiting the vehicle, but remaining near the RMP. After his partner finished speaking to § 87(2)(b) they returned to their RMP. As they were walking toward the RMP, PO Carbonell heard § 87(2)(b) yell out, "These fucking cops." PO Carbonell and his partner ignored § 87(2)(b) and returned back to the RMP. PO Carbonell recalled his partner informing him that § 87(2)(b) produced two PBA cards during his interaction with him. PO Carbonell recalled that they were present at this location for around two minutes.

§ 87(2)(b) then "peeled out" and continued traveling across Convent Avenue. PO Carbonell and his partner proceeded to drive toward the 26th precinct, which is in the same direction that § 87(2)(b) was driving. PO Carbonell recalled driving behind § 87(2)(b)'s vehicle. § 87(2)(b) proceeded to make a right onto West 127th Street and pulled his vehicle over. While he was parked, § 87(2)(b) hung his head out the driver's side of the window and began yelling obscenities at them. PO Carbonell and his partner decided to pull him over again to see what § 87(2)(b)'s problem was. PO Carbonell pulled their patrol car parallel to § 87(2)(b)'s vehicle and asked, "What is wrong with you? Why don't you calm down?" § 87(2)(b) replied, "I am not fucking talking to you guys anymore." PO Carbonell opened his door and mistakenly struck the driver's side door of § 87(2)(b)'s vehicle. § 87(2)(b) stated, "You guys did that on purpose." PO Carbonell requested § 87(2)(b)'s driving credentials again, but § 87(2)(b) kept repeating that he did not wish to talk to them.

§ 87(2)(b) then proceeded to pick up two cell phones and put them both to each of his ears stating that he was calling 911. PO Carbonell informed his partner to back up the RMP and radio for a boss. Minutes later, an officer, identified as Lt. Frank Sorensen, arrived at the location and proceeded to speak to § 87(2)(b). Lt. Sorensen requested that § 87(2)(b) remain in the vehicle, but he still exited his vehicle. Lt. Sorensen ordered PO Carbonell and PO Iturralde to return back to their vehicle while he spoke to § 87(2)(b).

PO Carbonell returned to the vehicle and stood by it. PO Carbonell recalled observing one of the female passengers roll down the window and tell him to calm down. § 87(2)(b) kicked the door of the vehicle telling the female to shut up. Lt. Sorensen stated, "Don't say that my officers did that to your vehicle later on." Lt. Sorensen then requested to see § 87(2)(b)'s PBA cards, which he provided. § 87(2)(b) approached PO Carbonell and PO Iturralde, looked at their badges, and recorded their names and badge numbers. Lt. Sorensen told § 87(2)(b) to record his information also, but he only wanted PO Carbonell and PO Iturralde's information. He then entered his vehicle and departed the area.

PO Rafael Iturralde

PO Rafael Iturralde was interviewed on (Enclosure #13A-G). On 4/15/04, PO Iturralde was working a 15:30 by 00:05 tour and was assigned to Sectors A and B with PO Rolando Carbonell. § 87(2)(g)

PO Iturralde stated that he requested to see § 87(2)(b)'s driver's license, registration and insurance. § 87(2)(b) reached into his wallet, removed two or three PBA cards, and handed them to him. PO Iturralde looked at the cards and asked whose cards they were. § 87(2)(b) replied that they belonged to § 87(2)(b) from the 43rd precinct. PO Iturralde asked, "Who is § 87(2)(b) to you?" and he replied, "That's § 87(2)(b)". PO Iturralde turned the card around and observed that the name he provided him with was different from the one that was on the card. PO Iturralde asked him again whose cards they were, and he repeated that they were § 87(2)(b).

PO Iturralde showed § 87(2)(b) the back of the card and asked, "Does that say § 87(2)(b)?" § 87(2)(b) replied, "Oh. That says § 87(2)(b)" and PO Iturralde asked who § 87(2)(b) was. § 87(2)(b) informed him that it was a friend of his. PO Iturralde asked him how many years he had on the job, and § 87(2)(b) replied that he had seven years. PO Iturralde stated, "That's the same amount of time my partner has." PO Iturralde handed him back the PBA cards stating, "All right man", allowing § 87(2)(b) to leave. He proceeded to return to his RMP.

§ 87(2)(b) pulled over and began yelling something out his window. The RMP's windows were rolled up, so they could not hear what he was stating. PO Iturralde rolled their windows down and heard him yelling, "What are you following me for?" Upon PO Carbonell's door striking § 87(2)(b)'s vehicle, he stated, "Oh, you fucking hit my car on purpose." PO Carbonell asked him, "What's the problem? We basically cut you a break." PO Iturralde also exited the vehicle. PO Iturralde observed that their RMP was obstructing traffic, so he parked it behind § 87(2)(b)'s vehicle.

PO Iturralde exited the vehicle and heard PO Carbonell request to see § 87(2)(b)'s driving credentials. § 87(2)(b) replied, "I refuse to talk to you guys. I am not talking to you fucking guys." By the conversation he was having on one of the phones, it was clear that he was speaking to a 911 operator. At this time, PO Iturralde placed a call over the radio requesting a supervisor.

A couple of seconds later, the passenger rolled the window down again and § 87(2)(b) yelled, "I told you to roll the fucking window up." Lt. Sorensen approached PO Iturralde and PO Carbonell, requested their memo books, and made an entry in them. § 87(2)(b) departed the area.

Lt. Frank Sorensen

Lt. Frank Sorensen was interviewed on 5/17/04 (Enclosure #14A-B). On 4/15/04, Lt. Sorensen was working a 14:45 by 23:20 tour and was assigned as the third platoon commander. While on routine patrol, Lt. Sorensen was radioed to the location of West 126th Street and Amsterdam in Manhattan for assistance concerning a car stop. Upon arriving at the location PO Rolando Carbonell and PO Rafael Iturralde approached his vehicle informing him that they pulled over a vehicle for having tinted windows and the driver pulled out a PBA card.

The officers stated that their intention was only to warn and admonish him, but that he was speaking discourteously towards them. Lt. Sorensen volunteered to speak to the driver, identified as § 87(2)(b). Lt. Sorensen approached § 87(2)(b)'s vehicle, greeted him, and asked if he was aware of the reason he was stopped. § 87(2)(b) replied that the officers had an attitude with him and that nothing was wrong with the tint on his windows. Lt. Sorensen recalled § 87(2)(b) stating that PO Iturralde and PO Carbonell were rude to him, but he did not specify in what way. Lt. Sorensen explained to him why tinted windows were such an item now and asked if he had a PBA card. § 87(2)(b) replied that he was in possession of a PBA card, and Lt. Sorensen asked whom he knew on the job. Although Lt. Sorensen could not recall the officer's name, § 87(2)(b) informed him of his name, and that the officer works in the 44th precinct.

Lt. Sorensen used to be stationed in the 44th precinct and did not recall any officer by the name that he provided. § 87(2)(b) stated that it was § 87(2)(b). Lt. Sorensen asked to see the

PBA cards, and § 87(2)(b) handed him the cards. Lt. Sorensen looked at the back of the cards and observed that there were no signatures on them. Lt. Sorensen asked, “Can you do me a favor and follow me to the stationhouse? I will give the cards back when we get there”, and § 87(2)(b) agreed to follow him. Lt. Sorensen stated that he only wanted him to come to the precinct to make sure everything was legitimate.

Upon arriving at the stationhouse, Lt. Sorensen observed the PBA delegate, Tony Saunters, standing in front of the precinct and asked him to contact the 44th precinct to make sure that the officers listed on the PBA cards are legitimate. He also requested that he speak to the officer whose cards they were and inform § 87(2)(b) to be more respectful when interacting with police officers. Lt. Sorensen handed him the cards and departed the area. Lt. Sorensen recalled that, later on that evening, the PBA delegate informed him that everything was legitimate, and that his cards were returned.

PO Rafael Iturralde’s CCRB History

In a three-year career with the NYPD, PO Iturralde has two CCRB cases consisting of five charges (Enclosure #3). PO Iturralde has no substantiated charges.

PO Rolando Carbonell’s CCRB History

In a three-year career with the NYPD, PO Carbonell only has this present CCRB case (Enclosure #2).

§ 87(2)(b) s CCRB History

§ 87(2)(b) has not filed any previous CCRB complaints.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Police Documents

The 26th precinct roll call for 4/15/04 indicated that Lt. Frank Sorensen was assigned to platoon supervisor (Enclosure #16A-B). PO Carbonell and PO Iturralde were documented as being assigned to Sectors A and B.

Conclusions and Recommendations

It is an indisputable fact that § 87(2)(b) was stopped by PO Iturralde and PO Carbonell and that he had a verbal interaction with PO Iturralde during the stop. It is also an indisputable fact that PO Iturralde and PO Carbonell had a second interaction with § 87(2)(b) following the initial stop of his vehicle. § 87(2)(g)

§ 87(2)(g)

Credibility Assessment

§ 87(2)(b), § 87(2)(g)

§ 87(2)(b) stated that he was relatively calm during both his interactions with PO Iturralde and PO Carbonell, while § 87(2)(b) PO Iturralde, and PO Carbonell's testimony all agree on the fact that § 87(2)(b) was loud and belligerent towards PO Iturralde and PO Carbonell.

§ 87(2)(b) stated that he pulled off after the initial stop of his vehicle by PO Iturralde and PO Carbonell, while PO Iturralde, PO Carbonell, § 87(2)(b) and § 87(2)(b) agree that § 87(2)(b) "peeled out". § 87(2)(b) stated that PO Carbonell threatened to confiscate § 87(2)(b)'s PBA cards, while § 87(2)(b) never mentioned this.

§ 87(2)(b) and § 87(2)(b) recalled § 87(2)(b) approaching their vehicle, while § 87(2)(b) maintains that he remained in the RMP during the entire incident. § 87(2)(b) stated that PO Iturralde was calling § 87(2)(b)'s relatives "stupid this and stupid that", while § 87(2)(b) never mentioned that being stated. § 87(2)(b) stated that PO Iturralde initially informed him of why he was pulled over, while § 87(2)(b) stated that it was not until PO Iturralde was returning to his vehicle that he stated this. § 87(2)(b) stated that he was pulled over because his windows were darkly tinted, while PO Iturralde and PO Carbonell stated that he was pulled over for driving while talking on the cell phone.

§ 87(2)(g), § 87(2)(b)

§ 87(2)(b) and § 87(2)(b) stated that PO Carbonell stood closely to the passenger side of the vehicle, while PO Carbonell and § 87(2)(b) stated that he stood more than a couple of feet away from the passenger side of the vehicle. There is no mention in either the complainant or witness testimonies of § 87(2)(b) attempting to exit the vehicle during the initial stop, while the officer testimonies agree that she did attempt to exit the vehicle and had to be ordered numerous times to reenter the vehicle. Neither the complainant nor witnesses mentioned § 87(2)(b) kicking his vehicle and cursing at the occupants during the second stop of his vehicle, while this was stated in § 87(2)(b) Lt. Sorensen, PO Carbonell, and PO Iturralde's testimony.

It should be noted that § 87(2)(b) and § 87(2)(b) both described the third individual who was riding with the officers as wearing a black baseball cap. § 87(2)(b) recalled wearing a black ball cap on the date of the incident. § 87(2)(g)

§ 87(2)(g)

In his testimony, PO Carbonell stated that § 87(2)(b) and § 87(2)(b) exited the RMP, while both § 87(2)(b) and § 87(2)(b) stated that they remained in the RMP throughout the entire incident. PO Iturralde stated that § 87(2)(b) informed him that his cousin had seven years and that his

partner had the same amount of time on the job, while PO Carbonell's CCRB history indicates that he only has three years on the job. In his testimony, Lt. Sorensen stated that PO Iturralde and PO Carbonell stated that they pulled § 87(2)(b)'s vehicle over because of tinted windows, while PO Iturralde and PO Carbonell informed him that it was § 87(2)(b)'s use of the cell phone while driving that served as the motive for the stop.

Allegations A and B: PO Rafael Iturralde and PO Rolando Carbonell stopped the vehicle in which § 87(2)(b) was an occupant on 4/15/04.

It is clear that § 87(2)(b)'s vehicle was pulled over by PO Iturralde and PO Carbonell. In their testimony, PO Iturralde and PO Carbonell stated that it was § 87(2)(b)'s driving while talking on the cell phone that precipitated the stop of his vehicle. However, Lt. Sorensen stated that PO Iturralde and PO Carbonell informed him that it was the tinted windows on § 87(2)(b)'s vehicle that served as the underlying cause of them stopping his vehicle. While it is undisputed that § 87(2)(b) was in possession of a cell phone at the time PO Iturralde and PO Carbonell stopped his vehicle it is unclear whether he was actually using it while operating his vehicle. § 87(2)(b) denied being on his cell phone prior to being stopped by the officers. § 87(2)(g)

According to Kamins' Search and Seizure, "an automobile stop is reasonable when an officer has probable cause to believe that an individual has violated the Vehicle and Traffic Law; in such case the motivation for the cause is irrelevant"(Enclosure #1A-F). § 87(2)(g)

§ 87(2)(b) it is recommended that allegations A and B be unsubstantiated.

Allegation C: PO Rafael Iturralde spoke obscenely and/or rudely towards § 87(2)(b)

§ 87(2)(b) stated that PO Iturralde spoke rudely towards him by making comments about the members of his family who issued him the PBA cards. § 87(2)(b), § 87(2)(g) He was not issued a summons nor was he arrested. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g) According to Patrol Guide Procedure 203-09, an officer is required to be "courteous and respectful" when dealing with the public (Enclosure #1A-F). § 87(2)(g)

Therefore, it is recommended that allegation C be substantiated.

Allegations D and E: PO Rafael Itturalde and PO Rolando Carbonell stopped the vehicle in which § 87(2)(b) was an occupant a second time on 4/15/04

§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
§ 87(2)(b), § 87(2)(g)
According to PO Carbonell and PO Itturalde, § 87(2)(b) pulled over without prompting from police, while § 87(2)(b), § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) all allege that § 87(2)(b) was pulled over by PO Carbonell and PO Itturalde. § 87(2)(b), § 87(2)(g)

According to Kamins, “in order for an officer to approach a stationary vehicle, the police must have an articulable basis for requesting information that is based upon an objective credible reason not necessarily indicative of criminality”(Enclosure #1A-F). § 87(2)(g)

§ 87(2)(b) it is recommended that allegations D and E be unsubstantiated.

Allegation F: PO Rolando Carbonell spoke rudely and/or obscenely towards § 87(2)(b)

In his statement, § 87(2)(b) stated that PO Carbonell called him a “stupid ass” during their second interaction. § 87(2)(b), § 87(2)(g)

§ 87(2)(b), § 87(2)(g), § 87(2)(b) and § 87(2)(b) who were on the same side of the vehicle and in the closest proximity to PO Carbonell, both testify to this statement being made by PO Carbonell. “An officer is not allowed to use profanity gratuitously, or to intimidate or retaliate or to show a lack of respect for a civilian”(Police Department v. Dukes, Oath Index Nos. 1137-39/00(Apr. 26, 2000)(Enclosure #1A-F). § 87(2)(b), § 87(2)(g)

§ 87(2)(g)
Therefore, it is recommended that allegation F be substantiated.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: